



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
 Prieto Diaz, Sorsogon 4711
 LGU TIN: 000794065
 Email Address: sbprietodiaz@gmail.com



Office of the Secretary to the Sangguniang Bayan

1st Endorsement
 February 20, 2024

1800 02-21-2024 659

OFFICE OF THE SANGGUNIANG BAYAN
 PRIETO DIAZ 4711

RELEASED

DATE: 02/21/2024 TIME: 9:00 AM
 BY: NAME / GETD REF. NO. 059

Respectfully transmitted to **Hon. ROMEO D. DOMASIAN**, Municipal Mayor, the herein attached Resolution No. 033-2024 entitled: **"A RESOLUTION AUTHORIZING HON. ROMEO D. DOMASIAN, TO ENTER INTO A CONTRACT OF AGREEMENT WITH KANEDA TRADING, DARAGA, ALBAY REPRESENTED BY MS. HELEN M. NUYLAN, PROPRIETRESS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON FOR THE SUPPLY AND DELIVERY OF VARIOUS LIVELIHOOD EQUIPMENT AND MATERIALS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"** for his information and appropriate action.



BERNADETTE R. ESPEÑA – YAO
 Secretary to the Sangguniang Bayan

Cc:

- Mr. Christian Lloyd Golena
MHRMO, BAC Chairman
- Ms. Gemma Ferrer
Municipal Treasurer
- Ms. Maribel Aldon
Municipal Accountant
- Ms. Linda Lim
MBO

Received by:
 RET G. DECTUM
 02/21/2024

Received by:
 JULIE D. DOMASCO
 MHRMO I
 02/21/2024

OFFICE OF THE
 MUNICIPAL ACCOUNTANT
 PRIETO DIAZ 4711

RECEIVED

DATE 2/21/24 TIME 9:51 am
 BY: EVELYN M. REYES

FEB 21 2024



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MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
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Official Email Add: sbprietodiaz@gmail.com



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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON FEBRUARY 19, 2024 AT ITS SESSION HALL

PRESENT:

Hon. Joseph H. Yap, Jr.	S. B. Member, Presiding Officer Pro-tempore
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	PPSK Pres./S.B. Member

ABSENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/on leave
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RESOLUTION NO. 033-2024

Introduced by Hon. Antonio Emano, Jr.

A RESOLUTION AUTHORIZING HON. ROMEO D. DOMASIAN, TO ENTER INTO A CONTRACT OF AGREEMENT WITH KANEDA TRADING, DARAGA, ALBAY REPRESENTED BY MS. HELEN M. NUYLAN, PROPRIETRESS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON FOR THE SUPPLY AND DELIVERY OF VARIOUS LIVELIHOOD EQUIPMENT AND MATERIALS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, endorsed by the Municipal Mayor, Hon. Romeo Domasian, to the Sangguniang Bayan was the Contract of Agreement with Kaneda Trading for the grant of authority from the Sangguniang Bayan as one of the requirements for projects chargeable to DOLE Trust Fund 2023;

WHEREAS, Kaneda Trading shall supply and deliver various livelihood equipment and materials, such as, but not limited to: heavy duty corded drill, angle grinder, gas range, standmixer, foot spa soaker, hair dryer, wood planer, hand drill, digital oscilloscope, bicycle with sidecar, food glass display, electric high-speed sewing machine, chest freezer, etc., with the total amount of P 2,428,958.30 only;

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WHEREAS, this collegial body is cognizant that pertinent documents have been submitted and complied with by the said Contractor through the Bids and Awards Committee, in compliance with the 2016 Revised IRR of R.A. No. 9184;

WHEREAS, on motion of Hon. Juan D. Ebid, duly seconded by Hon. Luis Lee Espeña, Jr;

NOW, THEREFORE, be it as it is

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian, to enter into a Contract of Agreement with Kaneda Trading, Daraga, Albay represented by Ms. Helen M. Nuylan, Proprietress, for the supply and delivery of various livelihood equipment and materials in the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, transmit this resolution to Hon. Romeo D. Domasian, Municipal Mayor; copy furnished Mr. Christian Lloyd Golena, MHRMO, BAC Chairman; Ms. Gemma Ferrer, Municipal Treasurer; Ms. Maribel Aldon, Municipal Accountant; Ms. Linda Lim, MBO; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. JOSEPH H. YAP, JR.
S. B. Member, Presiding Officer Pro-tempore

CONTRACT AGREEMENT

FEB 19 2024

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THIS AGREEMENT made the ____ day of _____, **2024** between **LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON** of the Philippines (hereinafter called "the Entity") of the one part and **KANEDA TRADING of A-7 BLDG 1 DARAGA PUBLIC MARKET, RIZAL ST., DARAGA, ALBAY** (hereinafter called "the Supplier") of the other part;

WHEREAS, the Entity invited Bids for certain goods and ancillary services, particularly ***Supply and Delivery of Various Livelihood Equipment and Materials*** and has accepted a Bid by the Supplier for the supply of those goods and services in the sum of ***TWO MILLION FOUR HUNDRED TWENTY-EIGHT THOUSAND NINE HUNDRED FIFTY-EIGHT PESOS AND 30/100 ONLY (Php 2,428,958.30).***

(hereinafter called "the Contract Price").

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract referred to.
2. The following documents as required by the 2016 revised Implementing Rules and Regulations of Republic Act No. 9184 shall be deemed to form and be read and construed as integral part of this Agreement, viz.:
 - i. Philippine Bidding Documents (PBDs);
 - i. Schedule of Requirements;
 - ii. Technical Specifications;
 - iii. General and Special Conditions of Contract; and
 - iv. Supplemental or Bid Bulletins, if any
 - ii. Winning bidder's bid, including the Eligibility requirements, Technical and Financial Proposals, and all other documents or statements submitted;

Bid form, including all the documents/statements contained in the Bidder's bidding envelopes, as annexes, and all other documents submitted (e.g., Bidder's response to request for clarifications on the bid), including corrections to the bid, if any, resulting from the Procuring Entity's bid evaluation;
- iii. Performance Security;
- iv. Notice of Award of Contract; and the Bidder's conforme thereto; and
- v. Other contract documents that may be required by existing laws and/or the Procuring Entity concerned in the PBDs. **Winning bidder agrees that additional contract documents or information prescribed by the GPPB that are subsequently required for submission after the contract execution, such**

as the Notice to Proceed, Variation Orders, and Warranty Security, shall likewise form part of the Contract.

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3. In consideration for the sum **TWO MILLION FOUR HUNDRED TWENTY-EIGHT THOUSAND NINE HUNDRED FIFTY-EIGHT PESOS AND 30/100 ONLY (Php 2,428,958.30)** or such other sums as may be ascertained **KANEDA TRADING** agrees to ***Supply and Delivery of Various Livelihood Equipment and Materials*** in accordance with his/her/its Bid.
4. The **LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON** agrees to pay the above-mentioned sum in accordance with the terms of the Bidding.

IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with the laws of the Republic of the Philippines on the day and year first above written.

HON. ROMEO D. DOMASIAN
Municipal Mayor

HELEN M. NUYLAN
Proprietress/General Manager

for:

for:

**LOCAL GOVERNMENT UNIT
OF PRIETO DIAZ, SORSOGON**

KANEDA TRADING